

The Court also finds *Business and Professions Code* section 9793 does not bar Plaintiff's claims. The Aircraft Repair Lien Law (*Bus. & Prof. Code §§ 9790 et. seq.* ("Lien Law")) regulate repairs and services provided to owners of noncommercial aircraft and authorizes a nonpossessory lien in favor of aircraft repairpersons, as long as their services are performed in accordance with mandatory statutory requirements. (*13 Witkin, Summary of Cal. Law, 11th edition | Personal Property* (May 2026 update) § 253; *4 Witkin, Summary of Cal. Law, 11th edition | Sales* (May 2026 update) § 348.) Failure to comply with *Business and Professions Code* § 9793 *et. seq.* precludes a repairperson from obtaining a lien on an aircraft for compensation for services rendered. (*Bus. & Prof. Code* § 9798.1, *subd. (h).*) There is nothing in the Lien Law that precludes a repairperson from pursuing a civil action for damages arising out of the owner's failure to pay for services. Defendant fails to cite to any authority – statutory or case law – that supports its position that the Lien Law bars such claims. The demurrer is thus **OVERRULED** as to this cause of action.

2nd and 4th causes of action (open book account and quantum meruit): Defendant argues *Business and Professions Code* § 9793 bars these claims. This argument fails for the reasons set forth above. The demurrer is thus **OVERRULED** as to these causes of action.

3rd cause of action (account stated): The FAC states sufficient facts to state a cause of action, including mutual assent. (*Leighton v. Forster* (2017) 8 Cal.App.5th 467, 491; FAC ¶¶ 5, 6, 14, 15.) The FAC attaches a copy of the work order and invoice containing line items of services performed, and states: "All line items were approved either in writing or verbally by the principal of the Defendant, Dr. Patrick T. Yoshikane, DDS." (FAC ¶ 5.) This is sufficient to show assent. The demurrer is thus **OVERRULED** as to this cause of action.

Motion to Strike

A motion to strike can be used to attack claims for damages that are not supported by the cause of action pleaded, such as unauthorized attorney fee claims. (*Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial* (The Rutter Group 2026) ¶¶ 7:182, 7:183; *Code of Civ. Proc.* § 436, *subd. (a).*) As pointed out by Defendant, there are no facts in the FAC establishing any contractual or statutory basis for the recovery of attorney fees. The motion to strike is therefore **GRANTED** with 10 days' leave to amend.

Counsel for Defendant shall give notice of this ruling.

		The Court also finds <i>Business and Professions Code</i> section 9793 does not bar Plaintiff's claims. The Aircraft Repair Lien Law (<i>Bus. & Prof. Code §§ 9790 et. seq.</i> ("Lien Law")) regulate repairs and services provided to owners of noncommercial aircraft and authorizes a nonpossessory lien in favor of aircraft repairpersons, as long as their services are performed in accordance with mandatory statutory requirements. (<i>13 Witkin, Summary of Cal. Law, 11th edition Personal Property</i> (May 2026 update) § 253; <i>4 Witkin, Summary of Cal. Law, 11th edition Sales</i> (May 2026 update) § 348.) Failure to comply with <i>Business and Professions Code</i> § 9793 <i>et. seq.</i> precludes a repairperson from obtaining a lien on an aircraft for compensation for services rendered. (<i>Bus. & Prof. Code</i> § 9798.1, <i>subd. (h).</i>) There is nothing in the Lien Law that precludes a repairperson from pursuing a civil action for damages arising out of the owner's failure to pay for services. Defendant fails to cite to any authority – statutory or case law – that supports its position that the Lien Law bars such claims. The demurrer is thus OVERRULED as to this cause of action. <u>2nd and 4th causes of action</u> (open book account and quantum meruit): Defendant argues <i>Business and Professions Code</i> § 9793 bars these claims. This argument fails for the reasons set forth above. The demurrer is thus OVERRULED as to these causes of action. <u>3rd cause of action</u> (account stated): The FAC states sufficient facts to state a cause of action, including mutual assent. (<i>Leighton v. Forster</i> (2017) 8 Cal.App.5th 467, 491; FAC ¶¶ 5, 6, 14, 15.) The FAC attaches a copy of the work order and invoice containing line items of services performed, and states: "All line items were approved either in writing or verbally by the principal of the Defendant, Dr. Patrick T. Yoshikane, DDS." (FAC ¶ 5.) This is sufficient to show assent. The demurrer is thus OVERRULED as to this cause of action. Motion to Strike A motion to strike can be used to attack claims for damages that are not supported by the cause of action pleaded, such as unauthorized attorney fee claims. (<i>Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial</i> (The Rutter Group 2026) ¶¶ 7:182, 7:183; <i>Code of Civ. Proc.</i> § 436, <i>subd. (a).</i>) As pointed out by Defendant, there are no facts in the FAC establishing any contractual or statutory basis for the recovery of attorney fees. The motion to strike is therefore GRANTED with 10 days' leave to amend. <i>Counsel for Defendant shall give notice of this ruling.</i>
9.	Casco v. Bank of America, N.A. 23-1335287	(Continued)
10.	Andresen v. Watermeier 25-1507923	(Continued)
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